

Opinion of the Court

ing up causes of action where a statute has not created them may be a proper function for common-law courts, but not for federal tribunals’”).

With the demise of federal general common law, a federal court’s authority to recognize a damages remedy must rest at bottom on a statute enacted by Congress, see *id.*, at 286 (“private rights of action to enforce federal law must be created by Congress”), and no statute expressly creates a *Bivens* remedy. Justice Harlan’s *Bivens* concurrence argued that this power is inherent in the grant of federal question jurisdiction, see 403 U. S., at 396 (majority opinion); *id.*, at 405 (opinion of Harlan, J.), but our later cases have demanded a clearer manifestation of congressional intent, see *Abbasi*, 582 U. S., at 134–135.

In both statutory and constitutional cases, our watchword is caution. For example, in *Jesner v. Arab Bank, PLC*, 584 U. S. 241, 264–265 (2018) we expressed doubt about our authority to recognize any causes of action not expressly created by Congress. See also *Abbasi*, 582 U. S., at 133 (“If the statute does not itself so provide, a private cause of action will not be created through judicial mandate”). And we declined to recognize a claim against a foreign corporation under the Alien Tort Statute. *Jesner*, 584 U. S., at 274.

In constitutional cases, we have been at least equally reluctant to create new causes of action. We have recognized that Congress is best positioned to evaluate “whether, and the extent to which, monetary and other liabilities should be imposed upon individual officers and employees of the Federal Government” based on constitutional torts. *Abbasi*, 582 U. S., at 134. We have stated that expansion of *Bivens* is “a ‘disfavored’ judicial activity,” 582 U. S., at 135 (quoting *Ashcroft v. Iqbal*, 556 U. S. 662, 675 (2009)), and have gone so far as to observe that if “the Court’s three *Bivens* cases [had] been . . . decided today,” it is doubtful that we would have reached the same result, 582 U. S., at 134. And for